

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

SEAFRIGO RESPONSE TO BAKERLY MOTION FOR ENLARGEMENT OF TIME

Seafrigo USA Inc. (“Seafrigo”) hereby responds to Bakerly’s Motion for Enlargement of Time. As reflected in Bakerly’s Motion, Seafrigo does not object to Bakerly’s Motion for Enlargement of Time to File its Opening Brief. Seafrigo writes, however, to clarify confusion that could result from Bakerly’s Motion.

Prior to the close of discovery the parties jointly agreed that if some extra time would be needed to complete document production, the parties would permit it. The parties also discussed that given the large number of files in dispute, the cost of discovery would outweigh the benefit of litigation regarding invoices of \$1,000 or less, which invoices totaled only approximately \$100,000 of the \$2.7 million in dispute. At the time, Seafrigo also suggested that it would not be economical to litigate over invoices of \$2,500 or less, recognizing that this would reduce the invoices in dispute by approximately half and have a relatively small impact on the quantum of the claim. Ultimately, Bakerly decided that it wanted to litigate at least over the claims for above \$1,000.

There are slightly over 1,000 invoices in dispute in this case, all of which were provided by Seafrigo to Bakerly as part of its April 4, 2023 document production (and presumably were in Bakerly's possession prior to Seafrigo's production thereof).

Discovery

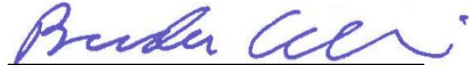
On April 4, 2023, consistent with the parties' agreement, Seafrigo produced a lengthy spreadsheet and 1,061 separate documents (which included over 2,000 pages) in response to Bakerly's Second Set of Document Requests and Interrogatories. It is Seafrigo's understanding that Bakerly does not need additional time to address that discovery and that Bakerly is not suggesting that the discovery responses were in any way untimely. Seafrigo, however, continued to search for documentation related to the smaller invoices after April 4th. Ultimately, Seafrigo did produce a revised spreadsheet and a small number of additional documents in that regard.

In this regard, Bakery's reference to Seafrigo having produced information on 1,037 invoices and 1,216 documents on April 14th and 18th is misleading. As indicated above, Seafrigo had in fact already produced all of the invoices indicated either on April 4, 2023 or in November of 2022 in response to prior discovery requests.¹ A minimal number of other communications regarding the smaller invoices were produced thereafter.

In light of the above, Seafrigo submits this response to clarify that it did not serve a large number of new documents on Bakerly after the agreed upon deadline for discovery responses.

¹ In the interest of time, Seafrigo did not pull out the previously produced invoices or related documents.

Respectfully submitted,



Brendan Collins

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Attorney for Respondent, Seafrigo USA Inc.

April 20, 2023

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the parties to this proceeding by depositing same in the United States mail, first class postage prepaid, and/or via email transmission, this 20th day of April, 2023.

A handwritten signature in blue ink, appearing to read "Brendan Collins", is written over a horizontal line.

Brendan Collins